

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND  
THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2023-1910 & 2023-1911

**STIPULATION AND FINAL AGENCY ORDER**

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE  
PROFESSIONAL COUNSELING AND THE CERTIFICATION TO PRACTICE ADDICTION  
COUNSELING IN THE STATE OF COLORADO OF MARK HENNINGSSEN, LICENSE NO. LPC  
573, CERTIFICATION NO. ACC 6886,

Respondent.

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IT IS HEREBY STIPULATED by and between the State Board of Licensed  
Professional Counselor Examiners and the State Board of Addiction Counselor  
Examiners (together, "Boards") and Mark Henningsen ("Respondent"), as follows:

1. The Boards have jurisdiction over the person of Respondent and the  
subject matter of this Stipulation and Final Agency Order ("Order").

2. Respondent was licensed to practice as a professional counselor ("LPC")  
in the State of Colorado on October 17, 1992, having been issued license number LPC  
573, and is currently so licensed. Respondent was certified to practice as an  
addiction specialist ("CAS III") in the State of Colorado on January 25, 2010, having  
been issued certification number ACC 6886, and is currently so certified.

3. This Order is a full and final resolution of case numbers 2023-1910 and  
2023-1911. This Order does not resolve any other cases, complaints, or matters,  
known or unknown to the Boards or Respondent, as of the effective date of this  
Order.

4. Based on its review of case numbers 2023-1910 and 2023-1911, the  
Boards allege that Respondent violated section 12-245-224(1)(i) and (r), C.R.S.  
Respondent denies the Boards' allegations.

5. Although Respondent denies the Boards' allegations, Respondent agrees  
that if the allegations were proven by the Boards at hearing, Respondent would be  
found to have violated section 12-245-224(1)(i) and (r), C.R.S., which states:

**12-245-224. Prohibited activities--related provisions.** (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which a therapeutic relationship exists.

#### **PERMANENT RELINQUISHMENT**

6. Respondent hereby permanently relinquishes his LPC license and the right to practice as a professional counselor in the State of Colorado and his CAS III certification and the right to practice as an addiction specialist in the State of Colorado, commencing from the effective date of this Order, and requests that the Boards accept such relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Boards, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for licensure or certification as a professional counselor or addiction technician or specialist in the State of Colorado at any time in the future.

7. Following relinquishment of his license and certification, Respondent shall not perform any act requiring a license or certification to practice.

8. Respondent also agrees not to perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

#### **TERMS AND CONDITIONS**

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

15. This Order shall be admissible as evidence at any hearing held before the Boards.

16. This Order shall be a public record in the custody of the Boards.

**AGREED TO AND ACCEPTED BY:**

RESPONDENT



MARK HENNINGSSEN  
LICENSE No. LPC 573  
CERTIFICATION No. ACC 6886

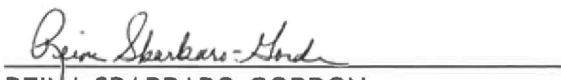
APPROVED AS TO FORM  
FOR RESPONDENT



ROBERT A. LEES  
Robert A. Lees & Associates

**AGREED TO AND ORDERED BY:**

STATE BOARD OF LICENSED PROFESSIONAL  
COUNSELOR EXAMINERS AND THE STATE  
BOARD OF ADDICTION COUNSELOR  
EXAMINERS

  
REINA SBARBARO-GORDON  
Program Director

Effective this 9th day of August,  
2023.